ANGELA CHAWAPIWA MUTAPIRI
(nee Mareverwa) versus
AARON MUTAPIRI

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE, 6 November 2025, 12 June 2026

Summons Commencing Action

W.Nyakudanga for the Plaintiff
M.Makuvatsine for the Defendant

PHILLIPS J:

Introduction

The plaintiff and defendant were legally married to each other in terms of the Marriage Act [*Chapter 5:11*] which is now the Marriages Act [*Chapter 5:17*], on 10 August 2019 although the parties had been customarily married sometime in 2008. The plaintiff approached this court seeking, amongst other things, an order for a decree of divorce and the sharing of their movable and immovable property. At pre-trial conference, the parties reached the consensus that the marriage had irretrievably broken down and consequently that a decree for divorce be granted. What the parties seek for the court to determine is the issue of sharing two immovable properties.

Factual Background

The parties were customarily married in 2008 and then formally married in 2019. The union was blessed with a daughter who has since attained majority so the issues of custody, access and maintenance are no longer in contention. Both parties are living in the United Kingdom and both

parties acquired two separate residential stands in their respective names before they got legally married. Stand number 1401 Knowe Phase 2, which is registered in the plaintiff's name and Stand number 5139 Knowe Phase 2, registered in the defendant's name. Of the two stands, only the Defendant's stand has been developed. The defendant's stand has a house that is close to completion, a cottage, borehole and durawall but the house has never been used by the parties as a matrimonial home. It is not in dispute that both parties contributed both directly and indirectly to the construction of the house on defendant's stand. The parties also agreed that the plaintiff would retain the Mercedes Benz ML 320 whilst the defendant would retain the Toyota Hilux.

Relief Sought

a) A decree of divorce.

b) That the Toyota Hilux bearing registration numbers AFR 4307 be awarded to the defendant.

c)That the Mercedes Benz ML 320 CDI 4matic bearing registration numbers KS 58 Y ST be awarded to the plaintiff.

d)That 80% of the immovable property known as stand number 5139 Norton Township of Knowe be awarded to the plaintiff and 20% to the defendant.

Issues for Determination

The issues for determination are as follows:

i. Whether or not the plaintiff should be awarded 80% share of the immovable property and 20% to the defendant in the property known as stand number 5139 Norton Township of Knowe. ii. Whether or not stand number 1401 Knowe Township Norton should not be shared equally between the parties.

The Evidence

Both parties gave evidence. The plaintiff testified and had two other witnesses who testified in her favour. Her evidence was that when the defendant purchased his stand 5139 in 2004, the two of them were already living together. She stated that she was a social worker and held two

or more jobs throughout the marriage which enabled her to contribute to the building of stand 5139. Her testimony was that while she always held employment, there was a lengthy period of time between 2009 to 2014 and 2022 to 2023 when the defendant was not employed and or was studying for his Master's Degrees so she would provide for the family. The plaintiff provided the court with files of bank statements to give evidence of her contribution. The voluminous bank statements were marked with different colour codes depending on the transaction. The red transactions were monies transferred by the defendant to the plaintiff which showed what the plaintiff described as "*minimal contributions to the household expenses such as rent, gas, food and the like*."

The plaintiff told the court that she marked the transactions that she transferred monies to the defendant in luminous orange throughout the record. Her closing submissions disclosed that she transferred a total of £142 783.25 (US$187 774.63) to the defendant for the construction of the of the property in dispute, and this amount was separate to what she would send him when he was in Zimbabwe and amounts that she borrowed from her brother and gave to the defendant. The plaintiff's further evidence was that she opened an account with Vaka Construction for the supply of building materials that amounted to £23875.67 (US$31 398.89) and the evidence of the same was produced, alongside various receipts of building materials. The court was told that the house on the stand had to be build twice as there were some inside walls had to be knocked down due to some poor workmanship.

The defendant told the court that he is employed as a Social Worker in the United Kingdom. He gave evidence that he is the one who gave the plaintiff the idea to acquire her stand which she did and then he later on acquired his stand. His testimony was that the idea behind the stand purchases was that they would assist each other in developing the two stands for future use. He told the court that when the time came for him to start building his stand, the Plaintiff initially refused to assist but then acknowledged that the Plaintiff had contributed to the house with some of the inside fittings. The defendant told the court that at the time the Plaintiff was concentrating on the borehole issue, he was seeing to it that the perimeter durawall was in place. The defendant denied that the plaintiff's contributions to the building of the house were single handed.

The defendant's proposal was that since the Plaintiff is claiming her own stand on the basis that she acquired it on her own, it follows that since he also acquired his stand on her own, he should be allowed to also fully benefit financially from the value of the stand that he paid for. The defendant's prayer is for the parties to then equally share the residue from the total selling price of his property.

The Law

The law regulating the division of the assets of the spouses at divorce is contained in section 7 of the Matrimonial Causes Act [Chapter 5:13]; section 7 (1) of the Act empowers an appropriate court to make an order with regard to the "*division, apportionment and distribution of the assets of the spouses*." The court is guided by the provisions of section 7 (4) which provide as follows:

> "(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all circumstances of the case, including the following-
>
> (a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> (d) the age and physical and mental condition of each spouse and child;
> (e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
> (g) the duration of the marriage;
>
> and in so doing the court shall endeavor as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

The law provides a wide range of factors for consideration and gives the court "*an extremely wide, if not unfettered, discretion to divide the assets. In doing so, the overarching consideration is to place the parties in the position they would have occupied if the marriage had continued, as far as possible in the circumstances*." See *Usayi* v *Usayi* SC 22/24.

In *Marian Chombo v Ignatius Chombo SC 41-18* Uchena J (as he was then) had this to say;

> "Assets of spouses' means all the assets owned by either spouse at the time of divorce individually and those owned jointly. They include assets acquired by either spouse before the marriage or during the period of separation. (See Gonye v Gonye 2009(1)".

Mwayera J (as she was then) in *Duncan v Duncan (HC 3068 of 2015; HH 232 of 2017) [2017] ZWHHC 232 (30 march 2017)* discussed spouses' assets and equitable distribution and quoted Gillespie J (as he then was) on **Section 7 of the Matrimonial Causes Act** in *Shenje v Shenje 2001 (2) ZLR 160 (H)* wherein he said as follows:

> "… In deciding what is reasonable, practical and just in any division, the court is enjoined to have regard to all the circumstances at the case. A number of more important and more usual circumstances are listed in the subsection. This list is not complete. It is not possible to give a complete list of all factors. The decision to property division order is an exercise of judicial discretion, based on relevant factors aimed at achieving a reasonable, practical and just division which secures for each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantages to the extent they are not inevitable of becoming divorced…"

Application of the Law to the facts

The court must determine what is reasonable, just and practical in ordering the division of property, having regard to all the circumstances of the case. Caselaw is clear that the concept of the assets of the spouses is what is considered and this includes assets that may have been purchased prior to the marriage and or assets purchased after separation. If the court is applying this principle, both the stands of the plaintiff and the defendant are to be included in the distribution. It will then not be fair to allow the plaintiff to exclusively keep stand 1401 to herself in addition to benefitting 80% from defendant's stand 5139.

This court does accept that the plaintiff contributed quite significantly to the improvements on the defendant's stand but the figures that she presents are difficult to reconcile with the construction that is said to be on stand 5139. This court finds that the plaintiffs averments that she has spent over US$187000 on a property that has only been valued at US$90000 is not sufficient basis for her to claim 80% of the defendant's property. At the time that the plaintiff was opening accounts with Vaka Construction, she had her own stand and could very easily have just started construction on her own stand, especially since her name was not on

that particular stand. Her actions were those of a person who wanted to please her husband and channel finances into his project. Now that things have not worked out, does it mean that she must now be permitted to take over the property? Would that be in the interests of justice?

What is good for the goose is good for the gander, if the plaintiff gets to keep her stand exclusively, surely the defendant should also be entitled to retain the value of his undeveloped stand. What remains then is how much the plaintiff should be entitled to claim for all her contributions to the construction and improvements on the defendant's stand. The defendant has proposed that the plaintiff get 50% of the residue. The defendant's offer, on the other hand, discounts the plaintiff's contributions a tad bit too much. The plaintiff does deserve just a little bit more credit. Whilst the defendant may have done some, the plaintiff's evidence shows that she certainly did more. Her evidence outweighs his.

Whilst the court finds that there is no justification for the plaintiff to be awarded 80% of stand 5139 to the prejudice of the defendant, she is entitled to more than the 50% residue after the defendant deducts what he spent on the undeveloped stand or what the stand is valued at. This court finds that it would be fair to award her 65% of the residue instead, in light of the fact that her stand 1401 will remain exclusively hers.

Disposition

Accordingly, it is ordered that:

1. A decree of divorce be and is hereby granted.
2. The Toyota Hilux bearing registration numbers AFR 4307 be awarded to the defendant.
3. The Mercedes Benz ML 320 CDI 4matic bearing registration numbers KS 58 Y ST be awarded to the plaintiff.
4. The plaintiff shall retain stand 1401 Norton Township of Knowe as her exclusive property.
5. Stand number 5139 Norton Township of Knowe is to be valued within three months of this court order and the defendant shall be entitled to the value that he paid for stand number 5139 Norton Township of Knowe before its development and construction.
6. After valuation of stand number 5139 Norton Township of Knowe and deduction of the undeveloped stand value, the plaintiff shall be entitled to 65% of the all the improvements

done on immovable property known as stand number 5139 Norton Township of Knowe and 35% of all such improvements being awarded to the defendant.

7. The valuation of the property known as stand number 5139 Knowe Phase 3, Norton is to be undertaken by a valuator agreed upon by both parties and the valuation services are to be paid for equally by the parties. Should the parties fail to agree on the valuator within aforementioned three months, the valuator shall be appointed by the Registrar of the High Court.
8. The Defendant is hereby given 6 months from the date of the order within which to buy out the Plaintiff from the property known as stand number 5139 Knowe Phase 3, Norton, failure of which the plaintiff will have 6 months to buy out the defendant.
9. Should the plaintiff fail to buy out the defendant within the timeframe give, the property will be open to be sold to any person who is able to buy it.
10. Each party shall pay its own costs.

PHILLIPS J: _____

Nyakudanga Law Chambers, Plaintiff's Legal Practitioner
Machaya and Associates, Defendant's Legal Practitioner